

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 6, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, AUGUST 6, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, AUGUST 5, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0091231 MENDELOWITZ, STEVEN v. ARMANI FINANCIAL

Plaintiff's Motion for Fees and Additional Costs

Plaintiff's motion is granted.

Civil Code section 1780, subdivision (e) provides "[t]he court shall award court costs and attorney's fees to a prevailing plaintiff in litigation filed pursuant to this section." (Civ. Code, § 1780., subd. (e).) The statute does not define "prevailing party" so "the court should adopt a pragmatic approach, determining prevailing party status based on which party succeeded on a practical level. . . . Under that approach, the court exercises its discretion to determine the prevailing party by analyzing which party realized its litigation objectives." (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 150.)

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Here, plaintiff is the prevailing party because he achieved his litigation objectives of prevailing on his causes of action against defendant Armani Financial Group, Inc.

Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of “showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’ ” ” ” ”

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoice attached as Exhibit 1 to the declaration of Kasra Sadr. The court observes instances where the attorneys and paralegal have insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action, and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 9.5 hours are reasonable for Kasra Sadr, 5.6 hours are reasonable for Nima Heydari, and 2.2 hours are reasonable for Liz Peralta.

The court must next address whether the requests for \$650 per hour by Kasra Sadr, \$500 for Nima Heydari, and \$135 per hour by Liz Peralta are reasonable. Determining the reasonable amount of attorneys’ fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

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The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Kasra Sadr, \$300 for Nima Heydari, and \$135 per hour by Liz Peralta are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff's motion is granted in the reduced amount of \$5,302.00 for attorney's fees and costs in the amount of \$315.00 for a total amount of \$5,617.00.

2. M-CV-0096170 MULLER, ANDRES v. MACRAE, WESTON

The motion for preliminary injunction is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0097944 DAY, BLISS v. MAIA, TAYLOR

Defendant's Demurrer to Complaint

Defendant demurs to plaintiff's verified complaint on the grounds the complaint does not allege facts sufficient to state an unlawful detainer cause of action and is uncertain. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.) A pleading is "uncertain" if it is ambiguous and unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

Code of Civil Procedure section 1161, subdivision (1) provides

When the tenant continues in possession, in person or by subtenant, of the property, or any part thereof, after the expiration of the term for which it is let to the tenant; provided the expiration is of a nondefault nature however brought about without the permission of the landlord . . . has been lawfully terminated or the time fixed for occupancy by the agreement between the parties has expired; but nothing in this subdivision shall be construed as preventing the removal of the occupant in any other lawful manner; but in

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case of a tenancy at will, it shall first be terminated by notice, as prescribed in the Civil Code.

(Code Civ. Proc., § 1161, subd. (1).)

Here, when taking the allegations in the complaint as true, plaintiff alleges facts sufficient to state a cause of action for unlawful detainer based on the expiration of the lease term and the notice of non-renewal/notice to vacate after the expiration of the lease term. Nor is the demurrer uncertain. As such, the demurrer is overruled.

Defendant shall file and serve an answer or other responsive pleading 5 calendar days after service of the order after hearing. (Cal. Rules of Court, rule 3.1320, subd. (g).)

4. S-CV-0053910 SPENCER, JEFFREY v. HYUNDAI MOTOR AMERICA

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Both parties' requests for judicial notice are granted.

Plaintiffs' objections to Ali Ameripour's declaration are sustained.

Ruling on Motion

Defendant moves to compel arbitration of plaintiff's complaint.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§ 1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries

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this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant contends there are two distinct arbitration provisions between the parties to compel arbitration: (1) the Owner’s Handbook and (2) the Genesis Connected Services Agreement (“GCSA”).

First, defendant does not meet its initial burden that an agreement to arbitrate exists with respect to the Owner’s Handbook as none was attached and there is insufficient evidence one exists.

Even assuming arguendo defendant properly presented the Owner’s Handbook that contains an arbitration agreement, there is insufficient evidence the Owner’s Handbook accompanied the vehicle or that plaintiff knew of the Owner’s Handbook. Moreover, defendant’s verified discovery responses indicate it did not “manufacture the subject vehicle, did not provide a warranty on the subject vehicle, and did not sell the subject vehicle to Plaintiffs.” So, even if one existed and accompanied the vehicle, it is unclear whether defendant would have the right to rely on the provisions therein. Additionally, the recent California Supreme Court case found that a manufacturer’s warranties that accompany a vehicle at the time of sale does not permit the manufacturer as a third party to enforce the arbitration provision. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1126.)

Defendant thereafter provides evidence that plaintiff enrolled their vehicle in GCSA—which is a smart-car system—through the Dealer-Assisted Enrollment process as another basis to compel arbitration. (Rao Decl., ¶¶ 4–6.) Defendant establishes that for individuals to enroll with GCSA, they must accept the terms and conditions by clicking a checkbox, and that the terms and conditions include an arbitration provision. (*Ibid.*) However, defendant does not provide any authority that would support an order compelling arbitration when the arbitration provision comes out of a smart-car system agreement when plaintiffs’ claims are for defects to the vehicle itself and not the smart-car system.

Even assuming arguendo that defendant met its initial burden as to the arbitration agreement contained in the Owner’s Handbook or the GCSA arbitration agreement applied to plaintiffs’ claims, plaintiffs thereafter meet their burden to establish

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defendant waived its right to arbitration. To establish the defense of waiver, plaintiff bears the burden to prove by clear and convincing evidence that defendant knew of the arbitration right and intentionally relinquished or abandoned it. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) “[I]ntentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it.” (*Ibid.*) Plaintiff must show it is highly probable the facts that support waiver are true. (*Ibid.*)

Here, defendant intentionally abandoned its right to arbitration because it knew about its right to arbitration as it reserved two separate hearings for a motion to compel arbitration on August 21, 2025, and November 20, 2025—that was ultimately continued to March 5, 2026—yet the hearings were dropped because defendant did not file any moving papers with the court. Moreover, defendant acted inconsistent with its right to enforce contractual arbitration because it did not properly move for arbitration until 14 months after it filed its answer and during the 14-month period between answering and moving to compel arbitration it responded to discovery, propounded interrogatories, issued deposition notices, sent inspection demands, and engaged in law and motion proceedings.

Accordingly, defendant’s motion to compel arbitration and stay action is denied.

5. S-CV-0054211 BRYANT, KANDIE v. MAIDU DENTAL

Defendant Luminita Markham’s Motion to Compel Response to Request for Statement of Damages

Defendant moves to compel a response to her request for statement of damages served on plaintiff via email on January 16, 2026. Specifically, defendant requests plaintiff to provide an itemized description of the following damages:

1. Hospital expenses and bills, if any;
2. Doctor, nurse, therapist or other medical practitioner expenses and bills, if any;
3. Wage or income loss, if any;
4. Diminution of earning capacity, if any;
5. General damages, including, but not limited to, pain and suffering, humiliation, embarrassment, and inconvenience.

Code of Civil Procedure section 425.11, subdivision (b) provides

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When a complaint is filed in an action to recover damages for personal injury or wrongful death, the defendant may at any time request a statement setting forth the nature and amount of damages being sought. The request shall be served upon the plaintiff, who shall serve a responsive statement as to the damages within 15 days. In the event that a response is not served, the defendant, on notice to the plaintiff, may petition the court in which the action is pending to order the plaintiff to serve a responsive statement.
(Code Civ. Proc., § 425.11, subd. (b).)

Plaintiff has not provided a statement of damages.

To determine whether a claim is for personal injury, courts “should look to the nature of the tort rather than the type or extent of damages pled.” (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 755 [internal quotation marks omitted].)

Here, plaintiff’s alleged causes of action against defendant for assault and battery constitute claims for personal injury because the nature of the torts are for defendant’s alleged striking of plaintiff’s body that caused “severe mental and emotional distress, including but not limited to humiliation, mental anguish, anxiety, worry, nervousness, fright, and physical distress.” Accordingly, a statement of damages is proper here where, as here, the complaint seeks to recover damages for personal injuries.

Defendant’s requests for damages fits within the categories of information included the mandatory judicial council form CIV-050.

Accordingly, defendant’s motion is granted. Plaintiff shall complete and provide to defendant a completed statement of damages on judicial council form CIV-050 within 15 days after service of the order after hearing.

6. S-CV-0056811 AKANA, KENT v. NATH, PRANAY

Plaintiff’s Motion for Preliminary Injunction

Preliminary Matters

The court declines to consider the declarations of Scott Shaw and James Filippi and any exhibits attached thereto filed in connection with plaintiff’s reply papers because new evidence is not permitted in reply papers.

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Ruling on Motion

Plaintiff moves for a preliminary injunction that requires the following

1. Enjoining Defendants from maintaining the Oregon ash tree located immediately adjacent to the parties' shared boundary line on Defendants' property (the "Subject Tree"), and any associated root system or overhanging limbs, in a manner that allows further encroachment onto Plaintiff's property or further damage to Plaintiff's fence, concrete, drainage, HVAC slab, roofline, or other improvements;
2. Ordering Defendants, within a time certain to be set by the Court, to promptly apply for and diligently pursue all permits and approvals required to remove the Subject Tree and abate the encroaching roots;
3. Ordering Defendants, upon issuance of the required permits and within a time certain to be set by the Court, to cause the Subject Tree to be removed by a properly licensed and qualified contractor or arborist and to take such reasonably necessary steps as are required to prevent regrowth and further root encroachment;
4. Ordering Defendants, pending completion of removal and final abatement, to undertake such reasonable interim measures as the Court deems necessary to prevent additional damage to Plaintiff's property, including abatement of encroaching limbs and such other temporary protective measures as are feasible and lawful without materially increasing the risk of tree failure.

Courts must evaluate two interrelated factors to determine whether to issue a preliminary injunction: "(1) the likelihood that the plaintiff will prevail on the merits at trial, and (2) the relative interim harm to the parties from the issuance or nonissuance of the injunction, that is, the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the preliminary injunction is issued." (Code Civ. Proc., § 526, subd. (a)(1)–(3); *SB Liberty, LLC v. Isla Verde Assn., Inc.* (2013) 217 Cal.App.4th 272, 280.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (2d Dist. 1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (2d Dist. 1984) 151 Cal.App.3d 1177.)

Here, the first factor weighs against plaintiff as it does not appear he is likely to prevail on the merits of his causes of action for private nuisance, trespass, and negligence. There is insufficient evidence that a tree on defendants' property caused

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plaintiff's alleged damages to his property. Nor is there sufficient evidence to establish defendants breached a duty to plaintiff.

Even if the court considered the improper new evidence submitted with the reply papers and found the first factor weighs in favor of plaintiff—which it does not—the second factor nonetheless weighs greatly against plaintiff. The interim harm that plaintiff is likely to sustain if the injunction is denied is potentially additional damage to his fence and concrete. On the other hand, if the injunction is granted then defendants will be forced to remove a tree that is the center of the parties' dispute without any adjudication about whether the tree is the source of the alleged damages, whether there are alternative means to abate the issues sans complete removal, and if defendants ultimately prevail they will not be able to replace the tree.

Accordingly, the plaintiff's motion for preliminary injunction is denied.